

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 4847 OF 2014

IN THE MATTER OF:

An application under section 115(1) of the
Code of Civil Procedure.

(Against Order)

-And-

IN THE MATTER OF:

Hiramba Kumar Roy and another

--- Preemptee-Appellant-Petitioners.

-Versus-

Nikhil Chandra Roy and others

---Preemptor-Opposite Parties.

Mr. Md. Zahangir Alam, Advocate

---For the Preemptee-Appellant-Petitioners.

Mr. Md. Monowar Hossain, Advocate

---For the Preemptor-Opposite Party No. 1.

**Heard on: 07.03.2023, 09.03.2023 and
05.06.2023.**

Judgment on: 05.06.2023.

At the instance of the present preemptee- appellant-
petitioners, Hiramba Kumar Roy and another, this Rule was
issued upon a revisional application filed under section 115(1) of
the Code of Civil Procedure calling upon the opposite party No.
1 to show cause as to why the judgment and order dated
02.09.2014 passed by the learned Joint District Judge,
Nilphamari in the Miscellaneous Appeal No. 36 of 2008

dismissing the appeal thereby affirming the judgment and order dated 21.09.2008 passed by the learned Assistant Judge, Domar, Nilphamari in the Miscellaneous Case No. 30 of 2007 allowing the pre-emption case should not be *set aside*.

The relevant facts for the disposal of this Rule, *inter-alia*, are that the present preemptor- respondent- opposite party No. 1, Nikhil Chandra Roy and others filed the Miscellaneous Case No. 30 of 2007 claiming the right of preemption under section 96 of the State Acquisition and Tenancy Act, 1950 against the present preemptee- petitioners in the court of the learned Assistant Judge, Domar, Nilphamari. The application for preemption contains that the case land described in the application originally belonged to the predecessor of the preemptors, as such, the defendant- opposite party Nos. 3-7 became owners by inheritance, thus, they became owners and co-sharers of the suit land. Defendant opposite party Nos. 5-7 handed over the suit land to the plaintiff and others, thereafter, they became titleless from the suit land. The other shares became titleless by handing over their shares. The preemptor- plaintiff came to know about the Kabala Deed No. 2569 dated 28.06.2005 that the case land was sold by the defendant Nos. 3 and 4 in favour of the

defendant Nos. 1 and 2 without serving any notices to the preemptors which are collusive. The present petitioners as the preemptees contested the suit by filing a written statement contending, *inter alia*, that both the parties have inherited the land from their predecessors, as such, they are co-sharers by inheritance but the defendant Nos. 3 and 4 sold the land to the preemptees as the defendant Nos. 1 and 2 who are outsiders, as such, the sale in favour of the preemptees by way of a sale deed being No. 2569 dated 28.06.2005 has been transferred without serving any notices but they came to know about the sale to the registry office and obtained a certified copy of the said Kabala Deed.

On receipt of this case, the learned Assistant Judge, Domar, Nilphamari heard both sides and accepted the evidence adduced and produced by the parties. After the hearing, both the parties, the learned trial court i.e. the learned Assistant Judge, Domar, Nilphamari was pleased to allow the preemption case in favour of the preemptor-opposite party by his judgment and order dated 21.09.2008. Being aggrieved the preemptee-petitioners preferred the Title Appeal No. 36 of 2008 in the court of the learned District Judge, Nilphamari who heard the matter

by the learned Joint District Judge, Nilphamari who after hearing the parties disallowed the appeal thereby affirmed the judgment and order passed by the learned trial court in favour of the present opposite party by his judgment and order dated 21.09.2008 by his judgment and order dated 02.09.2014.

Mr. Md. Zahangir Alam, the learned Advocate, appearing on behalf of the present preemptee-petitioners, submits that both the courts below committed an error of law resulting in an error in the decision occasioning failure of justice in allowing the suit and dismissing the appeal without taking into consideration that the plaintiffs have failed to prove their prima facie case, as such, committed an error of law occasioning failure of justice.

The learned Advocate further submits that after purchasing the case land the preemptee- petitioners have constructed a tinsheed house and other necessary things for the development of the case land which costs them Tk. 1,25,000/= (one lac twenty-five thousand) and the notices were served under section 89 of the State Acquisition & Tenancy Act, 1950, as such, the Rule should be made absolute.

The Rule has been opposed by the present preemptor-opposite party No. 1, Nikhil Chandra Roy.

Mr. Md. Monowar Hossain, the learned Advocate, appearing for the preemptor-opposite party No. 1, submits that the case land along with other lands were inherited by both parties from the predecessors. The preemptor- opposite party No. 1 came to know about the executed a Kabala sale deed No. 2569 dated 28.06.2005 by the defendant Nos. 3 and 4 in favour of the defendant No. 1 and 2 without serving any notice to the preemptor- opposite party No. 1 as per the requirement of section 96 of the State Acquisition & Tenancy Act, 1950. However, the preemptor- opposite party No. 1 came to know about the sale dated 28.06.2005, thus, the preemptor is entitled to have a preemption right under the above preemption law and he filed the miscellaneous case claiming a right of preemption as the co-sharer of the land, as such, the Rule is liable to be discharged.

Considering the above submissions made by the learned Advocates for the respective parties and also considering the revisional application filed under section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and order as well as perusing the needed documents available in the lower courts record with depositions made by the PWs and DWs, it appears to this court that the

preemptee- petitioners purchased the case land as 3rd party purchasers who are the outsiders on 28.06.2005 being Kabala Deed No. 2569 without serving any notices as per the law but the preemptor as the plaintiff, Nikhil Chandra Roy, came to know about the sale deed No. 2569 which was executed on 28.06.2005. The preemptor is the co-sharer and co-owner of the case land who has acquired a right of preemption under section 96 of the State Acquisition & Tenancy Act, 1950. The plaint further contains that the preemptor- opposite party No. 1 living along with his family members but the defendant- opposite party Nos. 3 and 4 sold the case land to the defendant Nos. 1 and 2 collusively who are strangers and to be acquired a right of the preemptor.

The learned Advocate for the present preemptee-petitioners submits before this court that the preemptees live beside the house of the preemptor- opposite party No. 1 as brothers, thus, the preemptor has every knowledge about the sale to the petitioners. Moreover, the preemptee purchased the land in the year 2005 and used to live thereon by making a tin shed, a tubewell and more status on the case land which costs them Tk.

1,25,000/= (one lac twenty-five thousand) as per the market value of the case land after development by them.

On the basis of the above submissions, the preemptor-opposite party No. 1 has already acquired preemption right under section 96 of the Act, 1950, therefore, he is entitled to get/purchase the case land described in the plaint. However, since the purchase of land in the year 2005 the preemptee developed and improved the case land by spending a huge amount of money.

In the above situation, this court has to take a decision as to the right acquired by the preemptor- opposite party No. 1 but since the year 2005 land has been developed and expanded by making tinsheed house and other necessary steps and for which preemptee- petitioners have been spent huge money.

In this regard, both the learned trial court and also the learned appellate court below concurrently found the right of the preemptor- opposite party No. 1 and also concurrently found that the petitioners had constructed a house and developed the land by spending huge money. This court considers as to the right and title of the preemptor- opposite party No. 1 but the opposite party No. 1 as the preemptor has to bar expenses of cost including land

cost and construction cost of a tin-shed house, tubewell and other things. Accordingly, the learned trial court and the learned appellate court below concurrently found the right of the preemptor- opposite party No. 1 by providing the right of preemption after passing the development expenses to the preemptee- petitioners amounting to Tk. 75,000/= (seventy-five thousand) and to vacate the case land and hand it over to the preemptor- opposite party No. 1 along with the expenses for the development of land as per the correct and current market value of the suit land.

In view of the above discussions, I consider that both the learned appellate court below and the learned trial court did not commit any error of law by allowing a preemption right acquired as to the present preemptor- opposite party No. 1. According, both the courts below found a concurrent decision in favour of the opposite party No. 1 after paying at Tk. 75,000/= (seventy-five thousand) to the preemptee- petitioners.

In the above findings of the learned courts below, I am of the opinion that both the courts rightly passed the judgment and order, therefore, I am not inclined to interfere upon the impugned judgment and order passed by the learned courts below.

Accordingly, I do not find any merit in the Rule.

In the result, the Rule is hereby discharged with the following directions.

The judgment and order dated 02.09.2014 passed by the learned Joint District Judge, Nilphamari in the Miscellaneous Appeal No. 36 of 2008 dismissing the appeal thereby affirming the judgment and order dated 21.09.2008 passed by the learned Assistant Judge, Domar, Nilphamari in the Miscellaneous Case No. 30 of 2007 allowing the pre-emption case is hereby upheld.

The preemptor- opposite party No. 1, namely, Nikhil Chandra Roy, must give an improvement cost of Tk. 75,000/= (seventy-five thousand) to the preemptee- petitioners within 1 (one) month from the date of receipt of this judgment and order.

The preemptee- petitioners are hereby directed to give the registered Kabala Deed as well as vacate the land to the preemptor- opposite party No. 1, namely, Nikhil Chandra Roy, after paying/accepting the amount of Tk. 75,000/= (seventy-five thousand) as a developing cost by providing a receipt in front of the learned Advocates of both sides of the lower court or local chairman and member as witnesses.

The sale deed being Kabala Deed No. 2569 dated 28.06.2005 is hereby declared invalid after receiving the above money.

The concerned section of this court is hereby directed to send down the lower courts' record along with a copy of this judgment and order to the learned courts below immediately.